LAW & MOTION CALENDAR
TENTATIVE RULINGS

June 18, 2026

Judge R. Shawn Nelson
Department C10

Department C10 hears law and motion on Thursdays at 10:00 a.m. and 1:30 p.m.

Court reporters: Official court reporters are not provided in this department for any proceedings. If the parties desire the services of a court reporter, the parties should follow the procedures set forth in the Privately Retained Court Reporter Policy on the court's website at www.occourts.org.

Tentative rulings: The court endeavors to post tentative rulings on the court's website by 9:00 a.m. the day of the hearing. Tentative rulings may not be posted in every case. Please do not call the department for tentative rulings if tentative rulings have not been posted. The court will not entertain a request to continue a hearing or the filing of further documents once a tentative ruling has been posted.

Submitting on tentative rulings: If all counsel intend to submit on the tentative ruling and do not desire oral argument, please advise the Courtroom Clerk or Courtroom Attendant by calling (657) 622-5210. Please do not call the department unless all parties submit on the tentative ruling. If all sides submit on the tentative ruling and so advise the court, the tentative ruling shall become the court's final ruling and the prevailing party shall give notice of the ruling and prepare an order for the court's signature if appropriate under Cal. R. Ct. 3.1312.

Appearances and public access: Appearances, whether in person or remote, must comply with Civil Procedure Code section 367.75, California Rule of Court 3.672, Orange County Superior Court Local Rule 375, and Orange County Superior Court Appearance Procedure and Information—Civil Unlimited and Complex (pub. 9/9/22).

Unless the court orders otherwise, remote appearances will be conducted via Zoom. All counsel and self-represented parties appearing via Zoom must check in through the court's civil remote appearance website before the hearing begins. Check-in instructions are available on the court's website.

The public may attend hearings by coming to court or via remote access as described above.

Photographing, filming, recording, and/or broadcasting court proceedings are prohibited unless authorized pursuant to California Rule of Court 1.150 or Orange County Superior Court Local Rule 180.

Non-appearances: If nobody appears for the hearing and the court has not been notified that all parties submit on the tentative ruling, the court shall determine whether the matter is taken off calendar or the tentative ruling becomes the final ruling.

NO.	CASE NAME	MATTER
10 a.m.		
1	Qazi v. Avenue One Community Association, Inc.	William O. Martin, Jr. moves to be relieved as counsel of record for Defendant PMP Management, LL. The hearing on this motion is **CONTINUED** to July 2, 2026 at 10:00 a.m. in Department C10. Moving counsel caused the motion to be served by email. Technically, the proof of service is defective because it does not state the sender's email address. (Code Civ. Proc., § 1013b(b)(1).)

		More importantly, however, Cal. R. Ct., rule 3.1362(d)(2) provides that if a motion to be relieved "is served on the client by electronic service … it must be accompanied by a declaration stating that the electronic service address is the client's current electronic service address." "As used in this rule, 'current' means that the address was confirmed within 30 days before the filing of the motion to be relieved. Merely demonstrating that the notice was sent to the client's last known address and was not returned or no electronic delivery failure message was received is not, by itself, sufficient to demonstrate that the address is current. If the service is by mail, Code of Civil Procedure section 1011(b) applies." (Id.) Counsel's declaration does not provide this required information. Instead, counsel's declaration states that the motion was served by mail (not email) at the client's last known address, but counsel provided no proof of service by mail. Moving counsel shall file a sufficient proof of service at least 5 court days before the continued hearing. Moving counsel shall give notice of this ruling.
1:30 p.m.		
1	Latif v. Jack W. Mitchell Construction, Inc.	Defendants Jack Mitchell Construction, Inc., Jack Mitchell Construction, Jack W. Mitchell and Lorie Mitchell's Demurrer to Plaintiff Alaa Latif's First Amended Complaint is OVERRULED as to the 2nd, 4th, 5th, and 7th causes of action, and SUSTAINED as to the 1st cause of action, as to Defendants Lorie Mitchell and Jack Mitchell, and SUSTAINED as to the 3rd and 6th causes of action. Plaintiff is granted 15 days leave to amend the complaint. <u>1st COA - Violation of Bus. & Prof. Code § 7031(b) - Disgorgement</u> First, Defendants contend that this cause of action fails as to the individual defendants, Jack Mitchell and Lorie Mitchell, because they were not the contractors whose license was suspended. Defendants also contend that it is uncertain as to what conduct is actually alleged against each Defendant. Bus. & Prof. Code §7031, subd. (b) provides: "Except as provided in subdivision (e), a person who utilizes the services of an unlicensed contractor may bring an action in any court of competent jurisdiction in this state to recover all compensation paid to the unlicensed contractor for performance of any act or contract." Subd. (e) provides: "The judicial doctrine of substantial compliance shall not apply under this section where the person who engaged in the business or acted in the capacity of a contractor has never been a duly licensed contractor in this state. However, notwithstanding subdivision (b) of Section 143, the court may determine that there has been substantial compliance with licensure requirements under this section if it is shown at an evidentiary hearing that the person who engaged in the business or acted in the capacity of a contractor (1) had been duly licensed as a contractor in

		this state prior to the performance of the act or contract, (2) acted reasonably and in good faith to maintain proper licensure, and (3) acted promptly and in good faith to remedy the failure to comply with the licensure requirements upon learning of the failure." Plaintiff alleges the following in the First Amended Complaint (FAC): "Defendant JACK W. MITCHELL CONSTRUCTION, INC., a California corporation ('JMC')." (FAC, ¶ 3). "JACK MITCHELL CONSTRUCTION is an unincorporated partnership, organized and existing under the laws of the State of California and doing business in the County of Orange. Plaintiff is further informed and believes, and thereon alleges, that Jack W. Mitchell and Lorie D. Mitchell are partners and/or managing agents of this partnership and that it was used interchangeably with JACK W. MITCHELL CONSTRUCTION, INC. to contract for and perform construction services at the Subject Property. As per information available from the Contractors State License Board (CSLB) website, JACK MITCHELL CONSTRUCTION's contractor's license is suspended for failure to comply with an outstanding civil judgment." (FAC, ¶ 4). "Defendants Jack W. Mitchell and Lorie D. Mitchell, as officers and managing agents of JACK W. MITCHELL CONSTRUCTION, INC. and as partners and/or managing agents of JACK MITCHELL CONSTRUCTION (the partnership), personally participated in, directed, authorized, and ratified the acts and omissions alleged in this Complaint, including misrepresenting and concealing the suspension of Defendants' contractor's license(s)." (FAC, ¶ 10). "Plaintiff met with Defendant Jack W. Mitchell in person to view the site and discuss the proposed construction project. During those discussions, Mitchell affirmatively represented to Plaintiff that JACK W. MITCHELL CONSTRUCTION, INC. ('JMC') was a duly licensed and bonded contractor by the California Contractor's State License Board." (FAC, ¶ 16). "On or about June 19, 2023, Defendants presented Plaintiff with a written Construction Agreement (the "Agreement") for extensive construction work and project management services at the Subject Property, which was executed on or about July 31, 2023." (FAC, ¶ 17). "Section 1(G) of the Agreement affirmatively represented that JMC was 'duly licensed in the State of California' and required that JMC 'will maintain such licensure for the duration of the project.'" (FAC, ¶ 18). "On or around August 1, 2023, Defendants presented Plaintiff with a screenshot of a printout from the CSLB website reflecting that Defendants' CSLB contractor's license was current and active as of that date." (FAC, ¶ 19). "In or around June of 2024, Plaintiff learned that the Construction Entity Defendants contractor's license with the CSLB was suspended and had been suspended for an undetermined amount of time due to the Construction Entity Defendants failure to comply with an outstanding civil judgment." (FAC, ¶ 20). "On information and belief, the suspension of the Construction Entity Defendants CSLB license occurred around the same timeframe as the parties' execution of the Agreement— on or about July 31, 2023, or shortly thereafter. As a result, JMC did not hold a valid CSLB license during the vast majority of time construction activities were performed at the Subject Property." (FAC, ¶ 21).

		"From approximately July 2023 through June of 2024, Plaintiff paid Defendants $122,837.65 for work on the Subject Property." (FAC, ¶ 38). First, the FAC is uncertain as to which Defendant was contractually required to carry the license. Notably, the FAC alleges that "Defendants presented Plaintiff with a written Construction Agreement" (FAC, ¶ 17), then alleges that the agreement represented that JMC was "duly licensed in the State of California" and required that JMC "will maintain such licensure for the duration of the project." (FAC, ¶ 18). Plaintiff later alleges that "Plaintiff and Defendants entered into a written Construction Agreement on or about June 19, 2023, executed on July 31, 2023, for construction work at the Subject Property." (FAC, ¶ 43). However, the only entity that was required to be licensed pursuant to the agreement was JMC, the corporation. (FAC, ¶ 3). Plaintiff argues that Jack and Lorie Mitchell are responsible under multiple theories, including alter ego theories, Jack Mitchell's own participation, and partnership liability pursuant to Corp. Code, § 16306(a), which provides: "(a) Except as otherwise provided in subdivisions (b) and (c), all partners are liable jointly and severally for all obligations of the partnership unless otherwise agreed by the claimant or provided by law." However, the partnership was not alleged to be the entity that was required to hold the license. While Plaintiff alleges that the partnership was used "interchangeably" with the corporation (FAC, ¶ 4), the FAC clearly alleges that only the corporation was required to be licensed pursuant to the agreement. If Plaintiff is now alleging that the partnership and/or the individuals were required to perform work under the agreement and, therefore, carry the license, then the FAC does not make this clear. Finally, with regards to any alter ego theory, "two conditions must be met before the alter ego doctrine will be invoked. First, there must be such a unity of interest and ownership between the corporation and its equitable owner that the separate personalities of the corporation and the shareholder do not in reality exist. Second, there must be an inequitable result if the acts in question are treated as those of the corporation alone.' [Citations.]" (*Hasso v. Hapke* (2014) 227 Cal.App.4th 107, 155.) "Whether a party is liable under an alter ego theory is normally a question of fact. [Citations.] 'The conditions under which the corporate entity may be disregarded, or the corporation be regarded as the alter ego of the stockholders, necessarily vary according to the circumstances in each case inasmuch as the doctrine is essentially an equitable one and for that reason is particularly within the province of the trial court.' [Citation.]" (*Zoran Corp. v. Chen* (2010) 185 Cal.App.4th 799, 811.) The court in *Zoran Corp.,* sets forth a multitude of factors to consider. Plaintiff did not allege any facts demonstrating alter ego liability between the individual defendants and the corporation JMC. Accordingly, the court sustains the demurrer as to the individual defendants for this cause of action.

		<u>2nd COA - Breach of Contract</u> Defendant contends that this claim is insufficiently plead because Plaintiff did not allege that breach was a "substantial" factor in causing Plaintiff's alleged harm, citing to CACI No. 303. Defendants also contend that his claim is insufficiently plead as to the individual Defendants. In order to state a cause of action for breach of contract, a Plaintiff must plead as follows: (1) the existence of the contract, (2) plaintiffs' performance or excuse for nonperformance, (3) defendant's breach, and (4) the resulting damages to the plaintiff. (*Oasis West Realty, LLC v. Goldman* (2011) 51 Cal.4th 811, 821). "Substantial" factor is not a required element. (*Oasis West Realty, LLC, supra,* 51 Cal.4th at 821 [elements]). Plaintiff alleges the following in support of this cause of action: "Plaintiff and Defendants entered into a written Construction Agreement on or about June 19, 2023, executed on July 31, 2023, for construction work at the Subject Property." (FAC, ¶ 43). "Defendants breached the Agreement by failing to maintain a valid contractor's license, failing to perform in a good and workmanlike manner, and failing to comply with applicable building codes and standards." (FAC, ¶ 44). As a direct and proximate result, Plaintiff suffered damages including the $122,837.65 paid and the cost to repair and complete the work. (FAC, ¶ 45). "Plaintiff has performed all obligations required under the Agreement or has been excused from doing so." (FAC, ¶ 46). Plaintiff has alleged all of the requisite elements for breach of contract. As for the individual defendants, the FAC alleges that "Defendants" entered into the agreement with Plaintiff, which includes all four defendants. Accordingly, the demurrer is OVERRULED as to this cause of action. <u>3rd COA - Fraudulent Inducement/Bus. & Prof. Code § 7160</u> "The elements of fraud, which give rise to the tort action for deceit, are (a) misrepresentation (false representation, concealment, or nondisclosure); (b) knowledge of falsity (or 'scienter'); (c) intent to defraud, i.e., to induce reliance; (d) justifiable reliance; and (e) resulting damage." (*Lazar v. Superior Court* (1996) 12 Cal.4th 631, 638 [internal citation omitted]). Facts must be plead with particularity, and this requirement "necessitates pleading *facts* which 'show how, when, where, to whom, and by what means the representations were tendered.'" (*Id.* at 645). "[A]n actionable misrepresentation must be made about past or existing facts ..." (*Neu-Visions Sports, Inc. v. Soren/McAdam/Bartells* (2000) 86 Cal.App.4th 303, 308). Bus. & Prof. Code § 7160 provides: "Any person who is induced to contract for a work of improvement, including but not limited to a home improvement, in reliance on false or fraudulent representations or false statements knowingly made, may sue and recover from such contractor or solicitor a penalty of five hundred dollars ($500), plus reasonable attorney's fees, in addition to any damages sustained by him by reason

of such statements or representations made by the contractor or solicitor."

Plaintiff alleges the following in support of this claim:

"In or about June 2023, prior to executing the Construction Agreement, Defendant Jack W. Mitchell, acting individually and on behalf of JMC, represented to Plaintiff that the Construction Entity Defendants were duly licensed, insured, and authorized to perform residential construction work at the Subject Property." (FAC, ¶ 48). "These representations were made orally during pre-contract discussions and confirmed in writing through Section 1(G) of the Agreement, which states: 'The general contractor is duly licensed for the duration of the project. General contractor will maintain general liability insurance throughout the project.'" (FAC, ¶ 49). "At the time these representations were made, Defendants either knew or failed to exercise reasonable care to determine that JMC's contractor's license was not active and in good standing." (FAC, ¶ 50).

However, these allegations are contradicted by other allegations in the FAC. Plaintiff also alleges that on August 1, 2023, Defendants presented Plaintiff with a screenshot printout of the CSLB website reflecting that Defendants' CSLB contractor's license was current as of that date (FAC, ¶ 19), and also alleges that: "On information and belief, the suspension of the Construction Entity Defendants CSLB license occurred around the same timeframe as the parties' execution of the Agreement— on or about July 31, 2023, <u>or shortly thereafter</u>." (FAC, ¶ 21 [emphasis added]).

Plaintiffs' allegations create an uncertainty as to whether Jack Mitchell made a representation as to an existing fact. If the suspension occurred *after* Mr. Mitchell misrepresented that JMC was licensed, then his statement would not have been a misrepresentation.

Accordingly, the demurrer is SUSTAINED as to this cause of action.

<u>4th COA - Fraudulent Concealment</u>

Next, Defendants contend that the FAC does not plead facts showing a duty to disclose, justifiable reliance, or damages; the alleged license status is a matter of public record and therefore cannot be "exclusively" known to Defendants. Defendants also contend that this cause of action fails as to the individual Defendants.

"The elements of a cause of action for fraud based on concealment are: '(1) the defendant must have concealed or suppressed a material fact, (2) the defendant must have been under a duty to disclose the fact to the plaintiff, (3) the defendant must have intentionally concealed or suppressed the fact with the intent to defraud the plaintiff, (4) the plaintiff must have been unaware of the fact and would not have acted as he did if he had known of the concealed or suppressed fact, and (5) as a result of the concealment or suppression of the fact, the plaintiff must have sustained damage.'" (*Kaldenbach v. Mut. of Omaha Life Ins. Co.* (2009) 178 Cal.App.4th 830, 850 [internal citations omitted]).

"There are 'four circumstances in which nondisclosure or concealment may constitute actionable fraud: (1) when the defendant is in a fiduciary relationship with the plaintiff; (2) when the defendant had exclusive knowledge of material facts not known to the plaintiff; (3) when the defendant actively conceals a material fact from the plaintiff; and (4) when the defendant makes partial representations but also suppresses some material facts. [Citation.]'" (*LiMandri v. Judkins* (1997) 52 Cal.App.4th 326, 335 [citing *Heliotis v. Schuman* (1986) 181 Cal.App.3d 646, 651].)

"Thus, a duty to disclose may arise from the relationship between seller and buyer, employer and prospective employee, doctor and patient, or <u>parties entering into any kind of contractual agreement.</u>" (*LiMandri, supra*, 52 Cal.App.4th at 337 [emphasis added]).

With regards to fraudulent concealment, a complaint need not specify information that is uniquely within defendants' knowledge. (*Tenet Healthsystem Desert, Inc. v. Blue Cross of Calif.* (2016) 245 Cal.App.4th 821, 840). In *Vega v. Jones, Day, Reavis & Pogue* (2004) 121 Cal.App.4th 282, the Court of Appeal found that the trial court had improperly sustained a demurrer to a concealment cause of action on the ground the cause of action on the ground plaintiff had failed to allege the cause of action "with the requisite degree of specificity," noting "The pertinent question in a concealment case is not who said what to whom …." (*Id*. at 296).

Here, Plaintiff alleges the following in support of his FAC: "At all relevant times, Defendants had a duty to disclose the true status of JMC's contractor's license because (a) they possessed exclusive knowledge of material facts; (b) they made partial representations in Section 1(G) of the Agreement that JMC was duly licensed; and (c) Plaintiff could not have discovered this information on his own." (FAC, ¶ 57). "Defendants intentionally concealed that JMC's contractor's license was not active or in good standing during the project." (FAC, ¶ 58). "Defendants concealed this information to induce Plaintiff to continue performance and payment under the Agreement." (FAC, ¶ 59). "Plaintiff did not know of the concealed facts and could not have discovered them through reasonable diligence." (FAC, ¶ 60). "Had Defendants disclosed the true facts, Plaintiff would have acted differently and would not have hired or paid them." (FAC, ¶ 62). "Defendants' concealment was a substantial factor in causing Plaintiff's harm, including payment of $122,837.65 and other damages." (FAC, ¶ 63).

Plaintiff has adequately alleged a duty to disclose as Plaintiff has alleged that Defendants entered into a contractual agreement with Plaintiff. Plaintiff alleges that Defendants intentionally concealed that JMC's license was not active despite the contractual agreement wherein they represented that JMC was licensed, and that Plaintiff was unaware of this fact.

Defendants contend that this information was not exclusively within the knowledge of Defendants as Plaintiff could have discovered this information via the CSLB website. However, Defendants failed to establish that this information was readily available to Plaintiff, and this fact exists outside of the FAC.

Accordingly, the demurrer is OVERRULED as to this cause of action.

5th COA - Negligence

Next, Defendants contend that this cause of action fails because it seeks only economic losses arising from the parties' contractual relationship and fails to allege any independent duty or facts showing causation. Defendants also contend that this claim fails as to the individual Defendants.

The elements for a claim of negligence are duty, breach of duty, causation, and damages. (*Burgess v. Superior Court* (1992) 2 Cal.4th 1064, 1072.) Defendant cites to *Erlich v. Menezes* (1999) 21 Cal.4th 543, 551, where the court held: "[C]onduct amounting to a breach of contract becomes tortious only when it also violates a duty independent of the contract arising from principles of tort law." (*Erlich v. Menezes* (1999) 21 Cal.4th 543, 551; but see (*North American Chemical Co. v. Superior Court* (1997) 59 Cal.App.4th 764, 774 ["A contract to perform services gives rise to a duty of care which requires that such services be performed in a competent and reasonable manner."]).

Defendants also cite to *Sheen v. Wells Fargo Bank, N.A*. (2022) 12 Cal.5th 905, where the court held that "there is no recovery in tort for negligently inflicted 'purely economic losses,' meaning financial harm unaccompanied by physical or property damage." (*Id.* at 922).

Plaintiff alleges the following in the FAC:

"Defendants undertook to manage, supervise, and perform construction services at the Subject Property, thereby owing a duty of care to exercise reasonable skill and diligence." (FAC, ¶ 66). "Defendants breached that duty by negligently performing and supervising the work, causing defects and deficiencies including mismeasurements, improper framing, and failure to pay subcontractors." (FAC, ¶ 67). "As a proximate result, Plaintiff sustained damages, including the cost to repair, replace, and complete the project, as well as loss of use and additional expenses." (FAC, ¶ 68).

Here, Plaintiffs have alleged an independent tort beyond the contractual duty to perform services. Furthermore, Plaintiffs have alleged property damage by alleging that Defendants caused defects to Plaintiff's property.

Accordingly, the demurrer is OVERRULED as to this cause of action.

6th COA - Negligent Misrepresentation

Defendants allege that this claim fails for the same reasons as those set forth in the fraudulent inducement cause of action.

The elements for a claim for negligent misrepresentation are: "1. The defendant must have made a representation as to a past or existing material fact. [¶] 2. The representation must have been untrue; [¶] 3. Regardless of his actual belief the defendant must have made the representation *without any reasonable ground for believing it to be true;* [¶] 4. The representation must have been made with the intent to induce plaintiff to rely upon it; [¶] 5. The plaintiff must have been unaware of the falsity of the representation; he must have acted in reliance upon the truth of the representation and he must have been justified in relying upon the representation. [¶] 6. And, finally, as a result of his reliance upon the truth of the representation, the plaintiff must have sustained damage." (*Continental Airlines, Inc. v. McDonnell Douglas Corp.* (1989) 216 Cal.App.3d 388, 402).

"Causes of action for intentional and negligent misrepresentation sound in fraud and, therefore, each element must be pleaded with specificity." (*Daniels v. Select Portfolio Servicing, Inc.* (2016) 246 Cal.App.4th 1150, 1166, overruled on other grounds, *Sheen v. Wells Fargo Bank, N.A*. (2022) 12 Cal.5th 905, 919-920, 948, fn.12.)

The court finds that this claim fails for the same reason as the fraudulent inducement cause of action. Plaintiff failed to allege "a representation as to a past or existing material fact", as his own allegations are contradictory and uncertain as to when the license was suspended, and whether the license was current at the time Defendants made the representation.

Accordingly, the demurrer is SUSTAINED as to this cause of action.

<u>7th COA - Negligent Failure to Disclose Material Facts</u>

Defendants contend that this cause of action fails for the same reasons as the other fraud and misrepresentation causes of action. Defendants also contend that this cause of action is redundant.

Neither Plaintiff nor Defendants set forth the elements for a cause of action for "Negligent Failure to Disclose Material Facts." Rather, Plaintiff cited to the following: "In transactions which do not involve fiduciary or confidential relations, a cause of action for non-disclosure of material facts may arise in at least three instances: (1) the defendant makes representations but does not disclose facts which materially qualify the facts disclosed, or which render his disclosure likely to mislead; (2) the facts are known or accessible only to defendant, and defendant knows they are not known to or reasonably discoverable by the plaintiff; (3) the defendant actively conceals discovery from the plaintiff." (*Warner Constr. Corp. v. City of Los Angeles* (1970) 2 Cal.3d 285, 294 [footnotes omitted]).

Plaintiff alleges the following in the FAC: "Defendants breached their duty of care by negligently failing to disclose that the Construction Entity Defendants' contractor's license was suspended and not in good standing during the time Defendants performed construction work at the Subject Property." (FAC, ¶ 80). "Defendants either knew or, through the exercise of reasonable diligence, should have known that their contractor's license was suspended and that their failure to disclose such information would likely mislead Plaintiff and cause him economic harm." (FAC, ¶ 81). "As a direct and proximate result of Defendants'

		negligence, Plaintiff entered into and continued performing under the Construction Agreement, made payments totaling approximately $122,837.65, and sustained additional damages including the cost to repair, replace, and complete the project, as well as other consequential losses." (FAC, ¶ 82). As with the fraudulent concealment cause of action, Plaintiff alleged that all Defendants had a duty to disclose by way of the contractual relationship, the previous representation that JMC was licensed and would be licensed for the duration of the project, and the failure to disclose the license suspension during the project. Accordingly, the demurrer is OVERRULED as to this cause of action. Defendants shall give notice.
2	Kono v. R+H Aesthetic Medicine	Defendants Alpine Aesthetic Medicine dba R+H Aesthetic Medicine, West Sac, P.C., Rei Young, D.O., and Katie Aguilar, NP demur to the Second Amended Complaint (SAC) filed by Plaintiff Katarina Kono. For the following reasons, the demurrer is **OVERRULED**. In ruling on a demurrer, a court must accept as true all allegations of fact contained in the complaint. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) A demurrer challenges only the legal sufficiency of the affected pleading, not the truth of the factual allegations in the pleading or the pleader's ability to prove those allegations. (C*undiff v. GTE Cal., Inc*. (2002) 101 Cal.App.4th 1395, 1404-05.) A demurrer is limited to the "four corners" of the pleading (which includes exhibits attached and incorporated therein) or from matters outside the pleading which are judicially noticeable under Evidence Code §§ 451 or 452. The SAC asserts causes of action for 1) medical malpractice, 2) breach of express warranty, 3) breach of implied warranty, 4) fraud/violation of California unfair competition statute, Bus. & Prof. Code § 17200 et seq., 5) fraud/violation of California false advertising law, Bus. & Prof. Code § 17500 et seq., 6) common law fraud, 7) negligence, negligence per se, gross negligence, and 8) strict product liability. Defendants argue that Plaintiff has failed to sufficiently allege that any statute of limitations was tolled. Code Civ. Proc. § 340.5 is the statute of limitations for medical provider's professional negligence. It provides that: > the time for the commencement of action shall be **three years after the date of injury or one year after the plaintiff discovers, or through the use of reasonable diligence should have discovered, the injury, whichever occurs first**. In no event shall the time for commencement of legal action exceed three years unless tolled for any of the following: (1) upon proof of fraud, (2) intentional concealment, or (3) the presence of a foreign body, which has no therapeutic or diagnostic purpose or effect, in the person of the injured person. . . . .

Code Civ. Proc. § 340.5 (emphasis added).

For purposes of the 1-year statute, "the accrual date is delayed until plaintiff is aware of her injury and its negligent cause." (Id. at §4:460, citing *Jolly v. Eli Lilly & Co.* (1988) 44 C3d 1103, 1109.) The date plaintiff "should have discovered" the injury is when plaintiff suspects or a reasonable person would have suspected that plaintiff's "injury" was caused by wrongdoing. (Id. at §4:461, citing *Jolly*, supra, at 1110-1111.)

As to knowledge triggering the one year limitation, it is a suspicion of wrongdoing, not knowledge of what specifically caused the injury, that causes the statute of limitation to run:

> a plaintiff need not know the precise manner in which a wrongdoer was negligent in order to discover his or her injury, within the meaning of section 340.5. …[C]ourts have rejected the argument that the limitations period does not begin to run until a plaintiff learns the specific causal mechanism by which he or she has been injured.

Knowles v. Superior Court (2004) 118 Cal.App.4th 1290, 1298.

The potential medical malpractice claimant need not be aware that there was professional "negligence," nor does she need to know the identity of any potential defendant in order to start the one-year limitations period. (See *Rose*, 207 Cal.App.3d at 768-69, stating that "[t]he plaintiff's ignorance of the identity of the defendant wrongdoer does not toll the one-year period.") Rather, she need only suspect wrongdoing by someone, as wrongdoing is understood in the lay sense, and the statute starts running:

> Under the discovery rule, the statute of limitations begins to run when the plaintiff suspects or should suspect that her injury was caused by wrongdoing, that someone has done something wrong to her. As we said in Sanchez and reiterated in Gutierrez, the limitations period begins once the plaintiff ""'has notice or information of circumstances to put a reasonable person on inquiry ....""'… [T]he limitations period begins once the plaintiff ""'has notice or information of circumstances to put a reasonable person on inquiry ....""' A plaintiff need not be aware of the specific "facts" necessary to establish the claim; that is a process contemplated by pretrial discovery. Once the plaintiff has a suspicion of wrongdoing, and therefore an incentive to sue, she must decide whether to file suit or sit on her rights. So long as a suspicion exists, it is clear that the plaintiff must go find the facts; she cannot wait for the facts to find her.

Jolly v. Eli Lilly & Co. (1988) 44 Cal.3d 1103, 1110-11 (citations omitted).

"[P]laintiffs are required to conduct a reasonable investigation after becoming aware of an injury, and are charged with knowledge of the information that would have been revealed by such an investigation." (*Fox v. Ethicon Endo-Surgery, Inc.* (2005) 35 Cal.4th 797, 808.)

"Simply put, in order to employ the discovery rule to delay accrual of a cause of action, a potential plaintiff who suspects that an injury has been wrongfully caused must conduct a reasonable investigation of all potential causes of that injury. If such an investigation would have disclosed a factual basis for a cause of action, the statute of limitations begins to run on that cause of action when the investigation would have brought such information to light." (Id. at pp. 808–809.)

The 1-year limitation period is also extended where a "Notice of Intent to Sue" is served during the last 90 days of limitations period. (Code Civ. Proc. § 364(a).) A malpractice action may not be commenced against a health care provider unless it has received at least 90 days' prior notice of plaintiff's intent to sue. (Id.; *Jones v. Catholic Healthcare West* (2007) 147 Cal.App.4th 300, 306-307 [no particular form of notice required (letter faxed on last day sufficient)]; and *Selvidge v. Tang* (2018) 20 Cal.App.5th 1279, 1284 [mailing notice to address medical professional provided to medical board for purpose of receiving mail provided adequate notice].)

While resolution of the statute of limitations issue is normally a question of fact (*Fox*, *supra*, 35 Cal.4th at p. 810), where the facts are undisputed application of the statute of limitations "is a purely legal question" subject to de novo review. (*Aryeh v. Canon Business Solutions, Inc*. (2013) 55 Cal.4th 1185, 1191.)

The SAC alleges "Plaintiff experienced pain, extreme swelling and redness during and immediately following the Morpheus8 procedure," which was performed on August 23, 2023. (SAC, ¶ 13-14). Absent the discovery rule or any tolling, then, the deadline to file Plaintiff's complaint was August 23, 2024, but Plaintiff did not file the original complaint until April 3, 2025.

Plaintiff alleges that she expressed concern to Defendants "who told Plaintiff her outcome was as expected and her skin was healing normally." (SAC, ¶ 14.) Plaintiff alleges she was "told that what she was experiencing was normal healing and tightening, and not indicative of a complication, fat loss or permanent harm." (SAC, ¶ 28.) Plaintiff alleges she underwent a second Morpheus8 treatment in October 2023. (SAC, ¶¶ 29-31.) "Immediately after the second treatment, Plaintiff perceived a significant loss of facial volume and an aged appearance." (SAC, ¶ 30.) She sent a message to Defendant Aguilar on October 23, 2023 stating, "I'm really freaking out that this Morpheus 8 completely killed any fat on my face… I look so much older this second round…." (SAC, ¶ 31.) Plaintiff sent another message the same day, noting "everything I read says [fat loss] is irreversible," and Defendant Aguilar suggested a follow up appointment. (SAC, ¶ 33.)

"On November 12-13, 2023, Plaintiff sent Defendant Aguilar extensive before-and-after photos fearing she had lost facial fat," and Defendant Aguilar responded, "Give it 3–4 months… collagen production takes that time." (SAC, ¶¶ 34-36.) Plaintiff alleges she relied on reassurances from Defendants and "reasonably believed that her outcome was either temporary, a non-negligent risk of the procedure, or 'in her head,' rather than the product of professional negligence." (SAC, ¶ 40.) In Spring 2024, Plaintiff began researching Morpheus8 complications and

		fat-loss injuries, learning that Morpheus8 can cause permanent facial fat loss. (SAC, ¶ 41.) Plaintiff alleges she did not discover her facial disfigurement was caused by Defendants' negligence until Spring 2024, and no earlier than March 2024. (SAC, ¶ 44.) In September 2024, Defendant Young sent Plaintiff a communication regarding a proposed refund conditioned on a release stating that "the Morpheus8 treatments did not cause facial volume loss." (SAC, ¶ 45.) Plaintiff sent Defendants a written notice of intent to sue on December 3, 2024. (SAC, ¶ 50.) This is a close call. However, as indicated previously, "[r]esolution of the statute of limitations issue is normally a question of fact." (*Fox, supra*, 35 Cal.4th at p. 810.) More specifically, as to accrual, "once properly pleaded, belated discovery is a question of fact." (*Bastian v. County of San Luis Obispo* (1988) 199 Cal.App.3d 520, 527.) Certain cases support the argument that a healthcare provider's reassurances can support delayed discovery. In *Brown v. Bleiberg* (1982) 32 Cal.3d 426, 436, the Supreme Court held there was a triable issue as to whether the plaintiff delayed filing suit based on a justifiable reliance on her doctor's repeated reassurance that her condition would eventually heal. (See also *Filosa v. Alagappan* (2020) 59 Cal.App.5th 772, 784 [patient who received several false reassurances from physician about his symptoms was not on inquiry notice of his illness and injury].) Here, Plaintiff alleges Defendant told Plaintiff to "give it 3-4 months" in November 2023 because "collagen production takes that time." (SAC, ¶¶ 34-36.) Plaintiff later discovered that her injuries may be permanent. (SAC, ¶¶ 41-44.) The Court must take these allegations as true on demurrer. Thus, the Court finds that Plaintiff has sufficiently pleaded facts showing that Plaintiff's claims did not begin to accrue until March 2024. Based on these facts, then, Plaintiff's December 3, 2024 intent to sue letter was thus sent within 90 days of the expiration of that one year period. Plaintiff shall give notice of this ruling. <u>Case Management Conference</u> The Case Management Conference is continued to December 10, 2026, at 1:30 p.m. in this department. Plaintiff to give notice.
3	Ruby v. Farano	Plaintiffs Paula Sanburg Ruby and Barry Ruby's Motion to Compel Further Responses to Special Interrogatories (Set One) and for Monetary Sanctions is **DENIED**. Plaintiffs' Motion is denied for several reasons. First, Plaintiffs propounded 300 Special Interrogatories, yet they did not attach a "Declaration for Additional Discovery," signed under penalty of perjury, as required by section 2030.050 of the Code of Civil Procedure.

		Plaintiffs' "Statement of Necessity Under CCP §§2030.030 and 2030.040" (Exhibit A to Ruby Declaration; Exhibit A to Opposition) is insufficient, as it does not comply with the requirements of section 2030.050, including a signature under penalty of perjury. "Unless a declaration as described in Section 2030.050 has been made, a party need only respond to the first 35 specially prepared interrogatories served, if that party states an objection to the balance, under Section 2030.240, on the ground that the limit has been exceeded." (Code Civ. Proc., § 2030.030, subd. (c).) Since Plaintiffs' Special Interrogatories did not comply with section 2030.050, Defendant Charle M. Farano's was justified in his refusal to respond to Special Interrogatory nos. 36 through 300. Second, a motion to compel further responses to interrogatories is required to be accompanied by a compliant separate statement. (Cal. Rules of Court, rule 3.1345(a)(2).) When a motion fails to include a separate statement that provides all of the information necessary to understand each discovery request, and all the responses that are at issue, the trial court is well within its discretion to deny the motion. (*In re Marriage of Moore* (2024) 102 Cal.App.5th 1275, 1296; see *People ex rel. Harris v. Sarpas* (2014) 225 Cal.App.4th 1539, 1554 [no abuse of discretion in denying motion to compel where the motions failed to comply with the applicable rules regarding separate statements].) For example, where a separate statement repeatedly grouped together several discovery requests, and where its statement of the factual and legal reasons for compelling further responses did not indicate which of the specific discovery requests the various factual and legal reasons related to, the trial court is justified in denying the motion for failure to comply with the separate statement requirement. (*Mills v. U.S. Bank* (2008) 166 Cal.App.4th 871, 893.) Plaintiffs submitted a separate statement that does not set forth each interrogatory at issue, nor did they submit a concise outline of each discovery request and response in dispute. Instead, they merely state that all 300 interrogatories are at issue, and they attach some, but not all, of Defendant's discovery responses. (Exhibit B to Ruby Declaration [attaching select responses to Special Interrogatories].) As in *Mills*, Plaintiffs do not comply with the separate statement requirement by attaching the discovery requests and responses to their Motion, as " '[t]he separate statement shall be full and complete so that no person is required to review any other document in order to determine the full request and the full response. Material shall not be incorporated into the separate statement by reference.' [Citation.]" (*Mills v. U.S. Bank* (2008) 166 Cal.App.4th 871, 893; Cal. Rules of Court, rule 3.1345(c).) While Plaintiffs are permitted to submit a concise outline of the discovery request and each response in dispute (Code Civ. Proc., §

		2030.300, subd. (b)(2); Cal. Rules of Court, rule 3.1345(b)(2); see *In Marriage of Moore* (2024) 102 Cal.App.5th 1275, 1296-1297 [moving party not required to obtain prior court permission to submit a concise outline in support of motion]), Plaintiffs' "Separate Statement in Support of Plaintiffs' Motion to Compel Further Responses to Special Interrogatories (Set One)" can hardly be described as complying with the separate statement requirement, or as a "concise outline of the discovery request and each response in dispute." As the moving party, it was Plaintiffs' duty to provide the Court with a compliant separate statement so that the Court could understand each discovery request, all the responses that are at issue, and the factual and legal reasons that warrant further responses. Plaintiffs' failure to comply with rule 3.1345 warrants denial of their Motion. Third, motions to compel further responses require that Plaintiffs make a good faith effort at informal resolution prior to filing the motion. Pursuant to the Code of Civil Procedure, a motion to compel further responses to interrogatories "shall be accompanied by a meet and confer declaration under section 2016.040." (Code Civ. Proc., § 2030.300, subd. (b)(1).) In turn, section 2016.040 of the Code of Civil Procedure states that a "meet and confer declaration in support of a motion *shall* state facts showing a reasonable and good faith attempt, *either in person, by telephone, or by videoconference*, to informally resolve each issue presented by the motion." (Code Civ. Proc., § 2016.040, subd. (a), italics added.) Plaintiffs only attempted to meet-and-confer with Defendant via written correspondence. (Exhibit C to Ruby Declaration; Exhibit C to Opposition.) Even when Defendant advised Plaintiffs that the meet-and-confer requirement required a telephonic or in-person discussion, Plaintiffs refused. Further, Plaintiffs' meet-and-confer efforts do not evince " 'a serious effort at negotiation and informal resolution.' " (*Clement v. Alegre* (2009) 177 Cal.App.4th 1277, 1293.) " '[T]he law requires that counsel attempt to talk the matter over, compare their views, consult, and deliberate.' [Citation.]" (*Id.* at p. 1294.) This is because Plaintiffs' sole meet-and-confer letter demanded further responses within 10 days, and they made no further effort to discuss why they were entitled to further responses as to 300 special interrogatories. Further, in determining whether Plaintiffs made an adequate effort at informal resolution, the Court may also consider "[t]he time available before the motion filing deadline" to determine "whether, from the perspective of a reasonable person in the position of the discovering party, additional effort appeared likely to bear fruit …." (*Obregon v. Superior Court* (1998) 67 Cal.App.4th 424, 432.) The discovery responses were mail-served on January 5, 2026, meaning Plaintiffs' deadline to file the subject Motion was February 24, 2026, or

		45 days after service, plus five additional days to account for mail service. Rather than make a serious effort at informal resolution, Plaintiffs sent two letters, dated January 13 and 15, which merely demanded further responses within 10 days (Exhibits A and C to Ruby Declaration). They then filed the subject Motion on January 23, 2026, even though they had about a month to engage in a good faith effort at resolving this dispute. The foregoing shows that, had Plaintiffs complied with their meet-and-confer obligations, this Motion may have been avoided. Finally, while the Court acknowledges that Plaintiffs are self-represented, such that they do not have the benefit of legal counsel. However, the law is clear that self-represented litigants are entitled to the same, but no greater, consideration than other litigants and attorneys. They are not afforded exceptionally lenient treatment, and they are held to the same restrictive rules as an attorney. (*Rappleyea v. Campbell* (1994) 8 Cal.4th 975, 984-985; *Rancho Mirage Country Club Homeowners Association v. Hazelbaker* (2016) 2 Cal.App.5th 252, 262.) For the reasons discussed, *supra*, Plaintiffs' Motion is denied. Defendant to give notice.
4	Dickson v. Barton	Plaintiff Corey Dickson's motion for leave to file a first amended complaint is **GRANTED**. <u>Authority</u> The Court may, in furtherance of justice, and on any terms as may be proper, allow a party to amend any pleading or proceeding by adding or striking out the name of any party, or by correcting a mistake in the name of a party, or a mistake in any other respect; and may, upon like terms, enlarge the time for answer or demurrer. (Code Civ. Proc. § 473(a)(1).) The Court may likewise, in its discretion, after notice to the adverse party, allow, upon any terms as may be just, an amendment to any pleading or proceeding in other particulars; and may upon like terms allow an answer to be made after the time limited by this code. (Code Civ. Proc. § 473(a)(1).) Additionally, any judge, at any time before or after commencement of trial, in the furtherance of justice, and upon such terms as may be proper, may allow the amendment of any pleading or pretrial conference order. (Code Civ. Proc. § 576.) In relevant part, California Rules of Court, rule 3.1324 provides that: (a) Contents of a motion to amend a pleading before trial must: (1) Include a copy of the proposed amendment or amended pleading, which must be serially numbered to differentiate it from previous pleadings or amendments;

		(2) State what allegations in the previous pleading are proposed to be deleted, if any, and where, by page, paragraph, and line number, the deleted allegations are located; and (3) State what allegations are proposed to be added to the previous pleading, if any, and where, by page, paragraph, and line number, the additional allegations are located. (b) Supporting declaration A separate declaration must accompany the motion and must specify: (1) The effect of the amendment; (2) Why the amendment is necessary and proper; (3) When the facts giving rise to the amended allegations were discovered; and (4) The reasons why the request for amendment was not made earlier. California courts generally allow great liberality, at all stages of the proceeding, in permitting the amendment of pleadings in order to resolve cases on their merits. (*IMO Development Corp. v. Dow Corning* (1982) 135 Cal.App.3d 451, 461.) Plaintiff submitted a declaration declaring as follows: The proposed First Amended Complaint corrects the identity of the true landlord entity, adds indispensable parties, clarifies agency relationships, and asserts additional claims and factual allegations based on newly discovered documentary evidence. (Decl. of Dickson, ¶ 2). Since the filing of the original complaint, Plaintiff obtained additional documents and information that clarify the roles of Defendants and reveal new facts, including, for example, emails from Defendants showing their participation in billing practices CAM charges, and a fully executed commercial lease. (Decl. of Dickson, ¶¶ 2-12). The documentary evidence was not reasonably available to him at the time of filing the original complaint. (Decl. of Dickson, ¶ 5). Plaintiff attached a copy of the proposed first amended complaint to the initial motion filed on 9/16/25, however, there is no caption page. (See ROA 43). Defendants did not oppose the motion and did not contend that they would be prejudiced by leave to amend. The court finds that Plaintiff substantially complied with Cal. R. Ct., rule 3.1324. Accordingly, the court GRANTS the motion, and ORDERS Plaintiff to separately file the first amended complaint that was attached to the motion (ROA 43), but with a compliant caption page. Plaintiff shall file this first amended complaint within 10 days. Plaintiff shall give notice.

		Case Management Conference The Case Management Conference is continued to October 15, 2026, at 1:30 p.m. in this department. Plaintiff to give notice.
5	Lam v. Bui	Defendants Hong Bui and Yen Hai Bui's Motion for Judgment on the Pleadings is **DENIED**. The Court finds Defendants have not presented any evidence they met and conferred prior to filing the Motion. However, the Court exercises its discretion to consider the Motion on its merits. Defendants' Requests for Judicial Notice are GRANTED as to the final judgment, complaint, and register of actions, in case no. 2023-01303811. (See Evid. Code, § 452, subd. (d) [the Court may take judicial notice of "records of … any court of this state"].) Standard for Motion for Judgment on the Pleadings A defendant may move for judgment on either the entire complaint, or as to any of the causes of action, on the ground that "[t]he complaint does not state facts sufficient to constitute a cause of action against that defendant." (Code Civ. Proc., § 438, subds. (c)(1)(B)(ii), (c)(2)(A).) " 'A motion for judgment on the pleadings serves the function of a demurrer, challenging only defects on the face of the complaint.' [Citation.] As with a demurrer, '[t]he grounds for a motion for judgment on the pleadings must appear on the face of the complaint or from a matter of which the court may take judicial notice.' [Citations.]" (*Eckler v. Neutrogena* (2015) 238 Cal.App.4th 433, 439; Code Civ. Proc., § 438, subd. (d).) "Presentation of extrinsic evidence is therefore not proper on a motion for judgment on the pleadings." (*Sykora v. State Dept. of State Hospitals* (2014) 225 Cal.App.4th 1530, 1534; *Burnett v. Chimney Sweep* (2004) 123 Cal.App.4th 1057, 1063.) A trial court's determination of a motion for judgment on the pleadings accepts as true the pleading's factual allegations, and it gives them a liberal construction. (*Gerawan Farming, Inc. v. Lyons* (2000) 24 Cal.4th 468, 515-516; see *Stella v. Asset Management Consultants, Inc.* (2017) 8 Cal.App.5th 181, 190-191 [while allegations of a complaint must be accepted as true for purposes of a demurrer, the facts appearing in exhibits attached to the complaint will also be accepted as true, and, if contrary to the allegations in the pleading, will be given precedence].) Although the trial court must accept as true all material facts properly pleaded, it "does not consider conclusions of law or fact, opinions, speculation, or allegations contrary to law or facts that are judicially noticed. [Citation.]" (*Stevenson Real Estate Services, Inc. v. CB Richard Ellis Real Estate Services, Inc.* (2006) 138 Cal.App.4th 1215, 1219.) The Present Claims Are Not Barred by Claim or Issue Preclusion

		Defendants contend the Complaint is barred by the doctrines of claim preclusion / res judicata, as well as issue preclusion / collateral estoppel. Defendants are mistaken. "Claim preclusion applies to ' " 'matters which were raised or could have been raised, on matters litigated or litigatable' " in the prior action. [Citation.] " ' "The doctrine ... rests upon the ground that the party to be affected, or some other with whom [the party] is in privity, has litigated, or had an opportunity to litigate the same matter in a former action in a court of competent jurisdiction, and should not be permitted to litigate it again to the harassment and vexation of his opponent." ' " [Citation.] " ' "If the matter was within the scope of the action, related to the subject-matter and relevant to the issues, so that it could have been raised, the judgment is conclusive on it despite the fact that it was not in fact expressly pleaded or otherwise urged." ' " ' [Citation.]" (*Howitson v. Evans Hotels, LLC* (2022) 81 Cal.App.5th 475, 486.) " ' Claim preclusion arises if a second suit involves: (1) the same cause of action (2) between the same parties (3) after a final judgment on the merits in the first suit. [Citations.]' [Citation.]" (*Egelston v. State Personnel Bd.* (2025) 112 Cal.App.5th 1050, 1055, citing to *DKN Holdings LLC v. Faerber* (2015) 61 Cal.4th 813, 824; see *Howitson v. Evans Hotels, LLC* (2022) 81 Cal.App.5th 475, 488 [claim preclusion does not apply where the parties in the two lawsuits are not the same].) "Collateral estoppel, or issue preclusion, 'prevents relitigation of previously decided issues' and applies '(1) after final adjudication (2) of an identical issue (3) actually litigated and necessarily decided in the first suit and (4) asserted against one who was a party in the first suit or one in privity with that party. [Citations.]' [Citation.]" (*Egelston v. State Personnel Board* (2025) 112 Cal.App.5th 1050, 1055.) Res judicata does not bar Plaintiffs' Complaint, as the causes of action between the quiet title action and the present Complaint are not the same. The quiet title action involved allegations that Defendant Cindy Bui encroached and took a portion of Plaintiff Ben Lam's property. While the allegations in the present Complaint allude to the property dispute underlying the quiet title action, the gravamen of the present Complaint is Defendants' alleged harassment of Plaintiffs. Thus, the allegations in the present Complaint were not matters that were raised, or could have been raised, in the quiet title action. The present causes of action were not matters "within the scope of the [quiet title] action, related to the subject-matter and relevant to the issues" in the quiet title action. (*Howitson v. Evans Hotels, LLC* (2022) 81 Cal.App.5th 475, 486.) Second, the quiet title action only involved Ben Lam as the plaintiff and Cindy Bui as the defendant. (Exhibit B to Request for Judicial Notice.) Here, Lam Nguyen is a new plaintiff, and Huong Bui is a defendant. While the Court acknowledges the possibility, if not the likelihood, that Lam Nguyen and Huong Bui are in privity with Ben Lam and Cindy Bui, respectively, this cannot be resolved by way of a Motion for Judgment on the Pleadings.

		Third, while there was a final judgment in the quiet title action, that judgment was only as to the sole cause of action for quiet title. There was no judgment as to Plaintiffs' present claims of harassment. Similarly, Plaintiffs' claims are not barred by collateral estoppel, as there has been no final adjudication of an identical issue that was actually litigated and necessarily decided in the quiet title action. In their Motion, Defendants make the argument that "California law does not recognize a standalone civil cause of action for 'harassment.' " However, Plaintiffs' Complaint does not include a cause of action for "harassment." Finally, Defendants contend that the Complaint fails to state facts sufficient to support a trespass claim, as "[t]he Complaint contains conclusory allegations and fails to plead specific facts establishing unauthorized entry or interference with Plaintiff's exclusive possessory rights." " 'Trespass is an unlawful interference with possession of property.' [Citation.] The elements of trespass are: (1) the plaintiff's ownership or control of the property; (2) the defendant's intentional, reckless, or negligent entry onto the property; (3) lack of permission for the entry or acts in excess of permission; (4) harm; and (5) the defendant's conduct was a substantial factor in causing the harm. [Citation.]" (*Ralphs Grocery Co. v. Victory Consultants, Inc.* (2017) 17 Cal.App.5th 245, 261–262.) The Court rejects Defendants' contentions, as Plaintiffs have alleged sufficient facts to support their trespass cause of action. Specifically, Plaintiffs allege they own or control the property located at 12531 Hazel. (Complaint, ¶¶ 1, 7.) They allege Defendants intentionally, recklessly, or negligently entered onto Plaintiffs' property, even though they were not given permission to do so. (Complaint, ¶ 11.) Defendants then caused Plaintiffs' harm by, among other things, cutting down Plaintiffs' fruit trees. (Complaint, ¶ 11, 41.) For purposes of a Motion for Judgment on the Pleadings, the foregoing allegations must be treated as being true. (*Hopp v. City of Los Angeles* (2010) 183 Cal.App.4th 713, 717.) More importantly, these allegations state facts sufficient to constitute a cause of action for trespass. Plaintiffs are ordered to provide notice of the Court's ruling.
6	Cheu v. RED SUN, LLC,	Defendants Teh-Ming Cheu, Cheng-Oh Cheu, and Diann-Ching Wang's Motion for Appointment of Appraisers to Value Plaintiff's Interest in Red Sun, LLC for Subsequent Buyout Order, to Stay this Case and for Order Setting Bond Amount is **DENIED**. Plaintiff Teh-Show Cheu's evidentiary objections to the Declaration of Andrew S. Sussman are OVERRULED as to paragraph 4 and Exhibit 2, but they are SUSTAINED as to paragraphs 7 and 8.

		Defendants' evidentiary objections to the Declaration of Thomas P. Aplin are SUSTAINED as to paragraph 2, lines 9:9-9:12, 9:14-9:15, and 9:16-9:17, as well as paragraph 5, line 9. The remainder of Defendants' evidentiary objections are OVERRULED. <u>The Motion is an Untimely, and Improper, Motion for Reconsideration</u> "When an application for an order has been made to a judge, or to a court, and refused in whole or in part, or granted, or granted conditionally, or on terms, any party affected by the order may, within 10 days after service upon the party of written notice of entry of the order and based upon new or different facts, circumstances, or law, make application to the same judge or court that made the order, to reconsider the matter and modify, amend, or revoke the prior order. The party making the application shall state by affidavit what application was made before, when and to what judge, what order or decisions were made, and what new or different facts, circumstances, or law are claimed to be shown." (Code Civ. Proc., § 1008, subd. (a); *Dickson v. Mann* (2024) 103 Cal.App.5th 935, 950-951.) " '[S]ection 1008 is designed to conserve the court's resources by constraining litigants who would attempt to bring the same motion over and over.' [Citation.]" (*Schachter v. Citigroup, Inc.* (2005) 126 Cal.App.4th 726, 735; see *UAS Management, Inc. v. Mater Misericordiae Hospital* (2008) 169 Cal.App.4th 357, 367 ["The overriding purpose of Code of Civil Procedure section 1008 is to prevent duplicative motions"].) "[A] *party* is prohibited from making, and the trial court from granting, a motion for reconsideration unless the requirements of… [section] 1008 are satisfied." (*New York Times Co. v. Superior Court* (2005) 135 Cal.App.4th 206, 211; see *Boschetti v. Pacific Bay Investments Inc.* (2019) 32 Cal.App.5th 1059, 1070 [section 1008 "prohibits a *party* from making a renewed motion not based on new facts or law"].) "Section 1008, subdivision (a) requires that a motion for reconsideration be based on new or different facts, circumstances, or law. A party seeking reconsideration also must provide a satisfactory explanation for the failure to produce the evidence at an earlier time. [Citation.]" (*Cox v. Bonni* (2018) 30 Cal.App.5th 287, 312; *New York Times Co. v. Superior Court* (2005) 135 Cal.App.4th 206, 212.) " 'The burden under section 1008 is comparable to that of a party seeking a new trial on the ground of newly discovered evidence: the information must be such that the moving party could not, with reasonable diligence, have discovered or produced it' at the original hearing." (*Dickson v. Mann* (2024) 103 Cal.App.5th 935, 951, citing to *New York Times Co. v. Superior Court* (2005) 135 Cal.App.4th 206, 212-213.) In seeking reconsideration, the motion fails when it is nothing more than an attempt to relitigate the merits of the original motion that the party is now seeking reconsideration of. (*Gilberd v. AC Transit* (1995) 32 Cal.App.4th 1494, 1500; see *J.W. v. Watchtower Bible & Tract Society of New York, Inc.* (2018) 29 Cal.App.5th 1142, 1171 ["'the name of a

		motion is not controlling, and, regardless of the name, a motion asking the trial court to decide the same matter previously ruled on is a motion for reconsideration"].) This is now Defendants' fourth attempt at seeking relief pursuant to section 17707.03, subdivision (c) of the Corporations Code. In fact, in denying Defendants' third Motion for Stay, this Court found it had denied similar motions on two prior occasions, yet the third Motion to Stay still did not present any new or different facts, circumstances, or law. The Court acknowledges there are a few notable differences between the first three Motions for Stay and this Motion, but none of these differences amount to new or different facts, circumstances, or law. First, Defendants now seek the appointment of three appraisers to value Plaintiff's interest in Red Sun, pursuant to section 17707.03, subdivision (c)(3). (See Sussman Reply Declaration, ¶¶ 5, 10.) They did not make such a request in their prior three Motions for Stay. Second, and related to the first point, Defendants present a different appraisal than what they presented in their second and third Motions to Stay. (Sussman Motion Declaration, ¶ 4; Exhibit 4 to Sussman Motion Declaration; Sussman Reply Declaration, ¶¶ 3-4.) Third, Defendants previously requested a bond of $7,500, but they now request the bond not exceed $10,000. (But see Sussman Reply Declaration, ¶ 8 [Defendants willing to post any bond or security the Court determines is appropriate].) On page 7, footnote 3 of their Motion, Defendants contend that they "have not previously sought the relief requested in this motion based on the valuation of Plaintiff's LLC interest." In their Reply, Defendants' counsel states "the present motion is based on those later-developed facts: the September 30, 2025 appraisal, the December 10, 2025 written offer, Plaintiff's written rejection, and the parties' resulting inability to agree on fair market value. Defendants did not previously present this same record to the Court." (Sussman Reply Declaration, ¶ 4.) Superficially, Defendants have presented new evidence that they did not present in their three prior Motions for Stay, and they do seek relief that they did not previously request. However, looking below the surface, the foregoing does not constitute new or different facts, circumstances or law. This is because Defendants could have, and should have, obtained that appraisal, and made that offer, which Plaintiff was likely to reject, at the outset. They also could have, and should have, requested the appointment of appraisers with their initial Motion for Stay. The purpose of all four motions are the same, namely, to stay the dissolution proceeding so that Defendants can attempt to acquire Plaintiff's membership interests in Red Sun. (See Sussman Reply

		Declaration, ¶ 11 [admitting "Defendants' request for a stay is directed to the dissolution and winding-up proceeding while the statutory buyout procedure proceeds"].) Finally, the Court denied Defendants' third Motion for Stay on May 11, 2023, yet Defendants did not file the present Motion until January 20, 2026. This is untimely, as they were required to seek reconsideration within 10 days after service of the written notice of entry of order. (Cal. Code Civ. Proc., § 1008, subd. (a).) The Court has already denied Defendants' Motion for Stay on three separate occasions. It now does so for the fourth time. Plaintiff is ordered to give notice of the Court's ruling.
7	Clinkenbeard v. Mesa	Off calendar.
8	Alcantar v. Lopez	Defendant Bianca Karina Lopez moves to compel further responses from Plaintiff Susan Alcantar to RFAs (Set Two) and Form Interrogatories (Set Two). For the following reasons, the motions are **DENIED** without prejudice. "Civil discovery is intended to operate with a minimum of judicial intervention. [I]t is a central precept of the Civil Discovery Act . . . that discovery be essentially self-executing[.] [Citations]." (*Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal.App.4th 390, 402.) To that end, motions to compel further responses must attach a meet and confer declaration "showing a reasonable and good faith attempt . . . to informally resolve each issue presented by the motion." (Code Civ. Proc., §§ 2016.040, 2030.310(b), 2033.290(b)(1).) Code of Civil Procedure section 2016.040 was recently amended to require that that reasonable and good faith attempt be "either in person, by telephone or by videoconference." (Code Civ. Proc., § 2016.040.) There must be a serious effort at negotiation and informal resolution. (*Clement v. Alegre* (2009) 177 Cal.App.4th 1277, 1294.) "Argument is not the same as informal negotiation." (*Townsend v. Superior Court* (1998) 61 Cal.App.4th 1431, 1437 [finding that "debate over the appropriateness of an objection" did not "constitute an earnest attempt to resolve impasses in discovery].) "[T]he law requires that counsel attempt to talk the matter over, compare their views, consult, and deliberate." (*Clement v. Alegre* (2009) 177 Cal.App.4th 1277, 1294.) Here, Defendant does not submit a meet and confer declaration showing any meet and confer effort in person, by telephone, or by videoconference—as required by Code of Civil Procedure section 2016.040. The court expects the parties will be able to resolve completely or to significantly narrow the scope of these discovery disputes. To that end, the parties are ordered to further meet and confer to resolve informally their discovery disputes. Prior to the further meet and confer, Counsel shall review Code of Civil Procedure sections 2017.010, 2023.010(f),

		2030.010 *et seq.*, and 2033.010 *et seq.* Counsel shall allot sufficient time to these discussion(s) to enable counsel to "compare their views, consult, and deliberate," and shall make good faith efforts to resolve any disputes. Following these discussions, if any issues remain outstanding for court intervention, Defendant Lopez may file a renewed motion setting forth the discovery response(s) remaining at issue, and including a detailed description of the proposals the parties made to resolve the dispute before Defendant Lopez filed the renewed motion. The court notes that failure to meet and confer in good faith and in compliance with this court's order may result in monetary sanctions against the parties and/or their counsel of record. Defendant is ordered to give notice. <u>Motion to Compel Deposition</u> Plaintiff Susan Alcantar moves to compel the deposition of Defendant JPMorgan Chase Bank, N.A. For the following reasons, the motion is DENIED in part and **GRANTED in part**. At a mutually agreeable time no later than July 17, 2026 at 10:00 a.m., Defendant JPMorgan Chase Bank, N.A., SHALL produce the person(s) most knowledgeable as to deposition topic nos. 13, 14, 15, 19, 20, 21, 22, 23, 29, 30, 31, 32, and 33. <u>Standard on Motion to Compel Deposition</u> Code of Civil Procedure Section 2025.450(a) provides that: "If, after service of a deposition notice, a party to the action or an officer, director, managing agent, or employee of a party, or a person designated by an organization that is a party under Section 2025.230, without having served a valid objection under Section 2025.410, fails to appear for examination, or to proceed with it, or to produce for inspection any document, electronically stored information, or tangible thing described in the deposition notice, the party giving the notice may move for an order compelling the deponent's attendance and testimony, and the production for inspection of any document, electronically stored information, or tangible thing described in the deposition notice." (Code Civ. Proc., § 2025.450(a).) "If a deponent fails . . . to produce any document or tangible thing under the dpeonent's control that is specified in the deposition notice or a deposition subpoena, the party seeking discovery may move the court for an order compelling . . . production." (Code Civ. Proc., § 2025.480(a).) The motion must be accompanied by a meet and confer declaration (*see* Code Civ. Proc., §§ 2016.040, 2025.450(b)(2)) and set forth good cause justifying the production of documents described in the deposition notice (Code Civ. Proc., § 2025.450(b)(1)). In order to show "good cause," the burden is on the moving party to make a "fact specific showing of relevance." (*Glenfed Develop. Corp. v. Superior Court* (1997) 53 Cal.App.4th 1113, 1117.) Arguments made in the moving papers or in a separate statement are insufficient to satisfy this requirement; good cause must be shown by way of admissible evidence, such as by declaration. (*Calcor Space Facility, Inc. v. Superior Court* (1997) 53 Cal.App.4th 216, 224.)

		Once good cause is shown by the moving party, the burden then shifts to the responding party to justify any objections made to requests for production. (See *Kirkland v. Superior Court* (2002) 95 Cal.App.4th 92, 98.) <u>Categories of Testimony</u> As an initial matter, this court assumes Plaintiff does not intend to compel deposition as to deposition topic nos. 1, 16, 17, 18, 34, and 35, as Plaintiff's Separate Statement does not set forth these topics or address the objections thereto. Defendant JPMC fails to justify the objections asserted in response to deposition topic nos. 13, 14, 15, 19, 20, 21, 22, 23, 29, 30, 31, 32, and 33. Although Defendant argues that it has no relevant non-privileged and non-protected knowledge because Plaintiff was driving her personal vehicle at the time of the incident and did not inform Defendant JPMC of the incident until after this litigation commenced, Defendant submits no evidence to support these contentions. Arguments raised in briefs constitute the unsworn statements or testimony of counsel, which do not constitute evidence within the meaning of the Evidence Code. (*In re Zeth S.* (2003) 31 Cal.4th 396, 413, fn. 11; see *In re Marriage of Pasco* (2019) 42 Cal.App.5th 585, 592; see *DiCola v. White Brothers Performance Products, Inc.* (2008) 158 Cal.App.4th 666, 683.) <u>Requested Documents</u> Plaintiff does not show good cause justifying the production of documents described in the deposition notice, and good cause is not apparent on the face of the Requests for Production. <u>Sanctions</u> Code of Civil Procedure section 2025.450(g) provides for the recovery of monetary sanction in connection with a motion to compel deposition, but Plaintiff seeks no monetary sanction here. Plaintiff to give notice to all parties.
9	Sanchez v. Yagar	Defendant Faye Araceli Yagar motions for order compelling Plaintiff Francisca J. Tellez Sanchez to Form Interrogatories (Set One), Special Interrogatories (Set One), and RFPs (Set One) are **GRANTED**. A party may move for an order compelling responses to discovery at any time "[i]f a party to whom [discovery requests] are directed fails to serve a timely response." (Code Civ. Proc., §§ 2030.290(b) [interrogatories], 2031.300(b) [RFPs].) By failing to serve timely responses, the responding party waives "any right to exercise the option to produce writings under Section 2030.230, as well as any objection to the interrogatories, including one based on privilege or on the protection for work product." (Code Civ. Proc., § 2030.290(a).) Similarly, the responding party waives "any objection to the [inspection] demand, including one based on privilege or on the protection for work product

		under Chapter 4 (commencing with Section 2018.010)." (Code Civ. Proc., § 2031.300(a).) Here, it is undisputed that Plaintiff did not timely respond to the discovery at issue, and Plaintiff does not oppose the requested relief. For these reasons, the court will GRANT the motions and order Plaintiff to provided verified, code-compliant responses without objection to the Form Interrogatories (Set One), Special Interrogatories (Set One), and RFPs (Set One). The court finds the circumstances make the imposition of requested monetary sanctions unjust and, on that basis, will DENY Defendant's request for sanctions against Plaintiff Francisca J. Tellez Sanchez. (*See* Code Civ. Proc., §§ 2023.010, 2030.290(c), 2031.300(c).) Defendant to give notice.